

Copyright and academia, particularly for Ph.Ds

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Yesterday, Tuesday the 21st of February 2012, I participated in a discussion at the University of Sussex Researcher Hive on copyright and academia, with particular emphasis on doctoral researchers, joined by Sarah Robins-Hobden, Liz Thackray and others. This post will attempt to document some of the ideas we discussed. It's far from authoritative as it comes from my flawed memory, without notes, from the occasion, but hopefully it will spark some thoughts from others.

We began by laying our ideological cards on the table. I find copyright in academia extremely frustrating. I think the idea of "intellectual property" is dubious and comes from the flawed idea that the first person to produce something becomes the owner of the property regardless of the feasibility of others independently producing it. Furthermore, when publishing, can the copyright holder exercise a form of censorship by withholding permission if a piece is critical? This doesn't seem to have been thoroughly tested in courts of law. It also ties in the commercial side of publishing; the second a financial transaction kicks in (buying a book etc.), any claim to purely academic criticism goes out the window...

This led to a discussion of what is copyrightable. Remember: many things are not copyrightable! Facts, titles, slogans, short phrases and non-original material are not.

We also debated, given the originality clause, where the line lay in academia between copyright violation and plagiarism; after all, ideas are not copyrightable, but specific expressions of the idea are. Plagiarism seems to work around this.

One of the most interesting points of the discussion was in relation to Sussex's new, mandatory e-thesis submission and publication. In this case, the thesis is put online on Sussex's website, but copyright is retained by the researcher. This led to several considerations: 1.) theses now have to

undergo copyright checking and permission sought, even for doctoral works; 2.) if permission is refused, the university have a risk assessment to publish anyway with a takedown policy.

I was curious to know what would happen if a **civil** copyright suit were brought against a thesis. As the copyright holder, the doctorate holder would be liable, but it is the university that published it. There seems quite a burden on the researcher, given this new requirement that the thesis is published online. This raises again the concern that researchers are being stifled from what they need to say by the bureaucratic overhead of copyright checking, despite academic exemptions.

Edit: 24th February 2012:

~~Some additional information on the use of epigraphs comes from Annette Moore in Sussex's library, via [Sarah Robins-Hobden](#), on the use of epigraphs:~~

Further edit: 26th February 2012:

I need to apologize for publicising this information without consulting the source personally. I had believed that the information was given in a general advice capacity, but it was, technically, in response to an individual query. As such, I'd like to clarify that I have paraphrased Annette's response; these are my words, not her official advice. Annette has, though, contributed some extremely insightful remarks in the comments below that I would recommend to interested parties.

To use an epigraph without permission under the 'fair dealing' exemption for criticism and review, the content of the epigraph itself should form part of the critique of that chapter.

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